IN THE DISTRICT COURT OF APPEAL OF THE STATE OF FLORIDA

FOURTH DISTRICT

CASE NO. 4D2026-1043
L.T. CASE NO. 24-CA-017449

LINDA R. MARTORANO AND STEVEN R. MARTORANO,

Appellants,

v.

VINTAGE AT LIGHTHOUSE POINT HOMEOWNERS ASSOCIATION, INC.,

Appellee.
_____/

VINTAGE AT LIGHTHOUSE POINT HOMEOWNERS ASSOCIATION'S MOTION TO DISMISS APPEAL

COMES NOW, Appellee, Vintage at Lighthouse Point Homeowners Association, Inc., ("Association"), by and through undersigned counsel and hereby moves to dismiss the subject appeal and in support thereof states as follows:

1. After a non-jury trial conducted over two days in January 2026, the trial court entered a Final Judgment of Foreclosure on

March 8, 2026, ("Foreclosure Judgment" or "Judgment") in favor of the Association.

2. Linda and Steven Martorano ("the Martoranos") appealed the Foreclosure Judgment on April 6, 2026, making the due date for their initial brief June 15, 2026.

3. On June 16, 2026, counsel for the Martoranos moved to withdraw from the case and filed a notification that the parties agreed to a 60-day extension of time for the Martoranos to serve their initial brief. Per the parties' agreement, the new deadline for the initial brief was August 14, 2026. Notably, when seeking the 60-day extension of time Martoranos' counsel did not advise the Association that counsel intended to withdraw from the case.

4. On July 8, 2026, this Court granted counsel's motion to withdraw and stayed the matter for twenty days pending appearance of new counsel. Importantly, the order also advised the Martoranos that:

> The case will move forward after the abatement period and compliance with the Florida Rules of Appellate Procedure and the rules of this court is required. Failure to comply with the rules may result in dismissal or other sanctions.

5. The Court's above language established that the agreed upon briefing deadlines were still in effect and that the Martoranos were required to comply with those deadlines or that their appeal would be subject to dismissal or other sanctions.

6. On the last day of the abatement period the Martoranos moved for another extension of time to obtain new counsel and requested this Court extend the abatement period. The Court granted the request and gave the Martoranos until August 28, 2026, to obtain new counsel and extended the abatement period through August 27, 2026.

7. Attorney Nicole Moskowitz filed a notice of appearance on behalf of the Martoranos on August 27, 2026; however, she did not file the initial brief or move for an extension of time within which to do so.

8. Again, the original deadline for the Martoranos to file their initial brief was June 15, 2026, seventy days from the filing of the notice of appeal. Fla. R. App. P. 9.110(f). Since the original deadline, the Martoranos have had an additional 91 days to prepare and serve their initial brief.

9. The Martoranos failed to comply with this Court's procedural rules and its orders which required the Martoranos to serve their initial brief by August 28, 2026, or move for an extension of time within which to do so. Repeatedly, the Martoranos and their counsel have waited until just before expiration of a deadline to seek an extension of time or to file the bare minimum to avoid non-compliance with an order or procedural rule. This paradigm has resulted in unnecessary delays and demonstrates the Martoranos' (and ostensibly their attorneys') bad faith.

10. The Association seeks dismissal of the subject appeal based on the Martoranos' failure to prosecute this appeal in compliance with the Florida Rules of Appellate Procedure and their failure to comply with this Court's orders. Fla. R. App. P. 9.410(a); *Fla. Cap. Mgmt., LLC v. Town of Palm Beach*, 114 So. 3d 389, 390 (Fla. 4th DCA 2013).

11. Dismissal of the appeal is warranted and does not violate due process given this Court's July 2026 order which informed the Martoranos of pertinent deadlines and advised that their failure to comply with the procedural rules may result in dismissal.

MEMORANDUM OF LAW

Although a harsh sanction, this Court is authorized to sanction a party with dismissal for failure to comply with the Court's orders and procedural rules. Florida Rule of Appellate Procedure 9.410 states in pertinent part:

> (a) Court's Motion. After 10 days' notice, on its own motion, the court may impose sanctions for any violation of these rules, or for the filing of any proceeding, motion, brief, or other document that is frivolous or in bad faith. Such sanctions may include reprimand, contempt, striking of briefs or pleadings, dismissal of proceedings, costs, attorneys' fees, or other sanctions.

Fla. R. App. P. 9.410(a). This court has upheld the sanction of dismissal for a party's failure to timely file the initial brief. *Fla. Cap. Mgmt., LLC v. Town of Palm Beach*, 114 So. 3d 389, 390 (Fla. 4th DCA 2013). This Court explained:

> [A]n appellate court may, as a sanction for violation of the Florida Rules of Appellate Procedure, dismiss an appeal filed under those rules. Here, the circuit court's original show cause order of March 18, 2012, explicitly warned petitioner that its appeal was subject to dismissal if that order was not complied with. As a consequence, the court's subsequent order of dismissal comported with due process.

Fla. Cap. Mgmt., LLC, 114 So. 3d at 390. In *Fla. Cap. Mgmt.*, the Court elaborated that "the circuit court [sitting in its appellate capacity] applied the correct law to the facts of this case, as the intentional disregard of a court order provides justification for dismissal of an appeal for failure to timely file the initial brief." *Id.,* at 309-91 (citing *United Auto. Ins. Co. v. Cnty. Line Chiropractic Ctr.*, 8 So. 3d 1258, 1260 (Fla. 4th DCA 2009)).

Similarly, here, this Court informed the Martoranos via its July 8, 2026, order that upon expiration of the abatement period the case would move forward and that the Martoranaos were required to comply "with the Florida Rules of Appellate Procedure and the rules of this court," explicitly informing the Martoranos that failure to do so could result in dismissal. Dismissal is warranted here given (1) the Court's explicit warning, (2) the fact the appeal has been pending since April 6, 2026, and the original briefing deadline was June 15, 2026, (3) the fact the Martoranos failed to file the initial brief despite being given two extensions of time to do so, (4) the fact the Martoranos failed to move for an extension of time prior to expiration of their most current deadline, and (5) the paradigm of

gamesmanship and bad faith established by the Martoranos' continued delays of this matter.

Notably, this case is distinguishable from other cases where the court reversed dismissal of the appeal because "the sins of the attorney [were improperly] visited on the client." *Forehand v. State*, 264 So. 3d 333, 336 (Fla. 1st DCA 2019). Here, the Martoranos were ostensibly aware of the briefing deadlines, or at least the deadline to obtain new counsel, but chose to wait until the last minute to retain new counsel. The Association should not be made to incur ongoing litigation costs due to unjustified delays caused by the Martoranos. Although the Association acknowledges the harshness of dismissal as a sanction for failing to file the initial brief, such a severe sanction is warranted given the paradigm of gamesmanship in which the Martoranos and their counsel have engaged. Attorney Moskowitz's appearance in the case on the last day of the extended abatement period and her failure to file the initial brief is no exception and demonstrates appellants' continued bad faith.

WHEREFORE, this Association moves this Court to dismiss the subject appeal in its entirety on the foregoing grounds, and for any additional relief this Court deems appropriate.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing motion to dismiss has been furnished by e-mail this 14th day of September 2026 to: Nicole R. Moskowitz, Esq., Neustein Law Group, P.A., at NLGlaw@yahoo.com; Nicole@neusteinlaw.com; and JL@neusteinlaw.com.

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